

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE

FOR

HOUSE BILL NO. 4326

By: Moore

COMMITTEE SUBSTITUTE

An Act relating to the Oklahoma Higher Learning Access Program; amending 70 O.S. 2021, Section 2603, as last amended by Section 1, Chapter 485, O.S.L. 2025 (70 O.S. Supp. 2025, Section 2603), which relates to eligibility requirements; adding technology center school education to eligibility; updating references; expanding eligibility for students in the court-ordered custody of a private nonprofit child-placing agency or a federally recognized Indian tribe during certain time; defining who a parent is for a child of a certified teacher; amending 70 O.S. 2021, Section 2605, as last amended by Section 2, Chapter 485, O.S.L. 2025 (70 O.S. Supp. 2025, Section 2605), which relates to student agreements; updating references; expanding eligibility for students in the court-ordered custody of a private nonprofit child-placing agency or a federally recognized Indian tribe during certain time; removing income requirement for student in the custody of the Oklahoma Department of Human Services, in the court-ordered custody of a private nonprofit child-placing agency or a federally recognized Indian tribe during certain time; requiring Oklahoma State Regents for Higher Education verify standard or alternative certificate is in a classroom subject; expanding definition of certified teacher; clarifying computation of employment for purposes of eligibility; requiring standard or alternative certification be in a classroom subject as determined by the State Regents; clarifying effect of service as an emergency or provisionally certified teacher; and providing an effective date.

1 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

2 SECTION 1. AMENDATORY 70 O.S. 2021, Section 2603, as
3 last amended by Section 1, Chapter 485, O.S.L. 2025 (70 O.S. Supp.
4 2025, Section 2603), is amended to read as follows:

5 Section 2603. A. Except as otherwise provided for in
6 subsection B of this section and elsewhere in this section, to be
7 eligible to participate in the Oklahoma Higher Learning Access
8 Program and to qualify for an award which includes payment of an
9 amount equivalent to resident tuition or other tuition pursuant to
10 Section 2604 of this title for the first semester or other academic
11 unit of postsecondary enrollment, a student shall:

12 1. Be a resident of this state or be enrolled in a school
13 district located in this state that serves students who reside in
14 both this state and an adjacent state pursuant to a contract as
15 authorized in Section 5-117.1 of this title;

16 2. Be a United States citizen or lawfully present in the United
17 States. A student who is not a United States citizen or lawfully
18 present in the United States shall not be eligible to participate in
19 the Oklahoma Higher Learning Access Program and to qualify for an
20 award notwithstanding the provisions of Section 3242 of this title.
21 The provisions of this paragraph shall not apply to any student who
22 was enrolled in the Oklahoma Higher Learning Access Program prior to
23 the end of the 2006-2007 school year;

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1 3. Have a record of satisfactory compliance with agreements
2 executed pursuant to Section 2605 of this title;

3 4. a. Have graduated within the previous three (3) years
4 from a high school accredited by the State Board of
5 Education or the Oklahoma School of Science and
6 Mathematics with a minimum 2.5 cumulative grade point
7 average on a 4.0 scale for all work attempted in
8 grades nine through twelve,

9 b. Have graduated within the previous three (3) years
10 from a high school not accredited by the State Board
11 of Education with a minimum 2.5 cumulative grade point
12 average on a 4.0 scale for all work attempted in
13 grades nine through twelve and have achieved a
14 composite score of 22 or higher on the ACT test, or

15 c. Have satisfactorily completed within the previous
16 three (3) years an educational program that was
17 provided through a means other than a public or
18 private school and have achieved a composite score of
19 22 or higher on the ACT test;

20 5. Have completed the curricular requirements for admission to
21 an institution within The Oklahoma State System of Higher Education
22 or have completed the core curriculum and be seeking admission to a
23 technology center school governed by the State Board of Career and
24 Technology Education. Students shall also have attained a 2.5 grade

1 point average in the ~~core~~ Oklahoma's Promise required curriculum
2 courses. Students who attended a high school which did not offer
3 all the ~~core~~ Oklahoma's Promise required curriculum courses or
4 students who were educated by other means and were not offered all
5 the ~~core~~ Oklahoma's Promise required curriculum courses shall be
6 allowed to satisfy this curriculum requirement by participating in a
7 program approved by the Oklahoma State Regents for Higher Education
8 for remediation of high school curricular deficiencies;

9 6. Have satisfied admission standards as determined by the
10 Oklahoma State Regents for Higher Education for first-time-entering
11 students for the appropriate type of institution, or, if attending a
12 private institution, have satisfied admission standards as
13 determined by the private institution. No student participating in
14 the Oklahoma Higher Learning Access Program shall be admitted into
15 an institution of higher education by special admission standards;

16 7. Have secured admission to, and enrolled in, an institution
17 which is a member of The Oklahoma State System of Higher Education,
18 a postsecondary vocational-technical program offered by a technology
19 center school that meets the requirements to be eligible for federal
20 student financial aid, or a private institution of higher learning
21 located within this state and accredited pursuant to Section 4103 of
22 this title; and

23 8. a. Have established financial need according to the
24 provisions of subsection D of Section 2605 of this

1 title and standards and provisions promulgated by the
2 Oklahoma State Regents for Higher Education,

3 b. If the student was adopted between birth and twelve
4 (12) years of age while in the permanent custody of
5 the Oklahoma Department of Human Services, in the
6 court-ordered custody of a ~~licensed~~ private nonprofit
7 child-placing agency licensed by the Oklahoma
8 Department of Human Services, or federally recognized
9 Indian tribe, as defined by the federal Indian Child
10 Welfare Act of 1978, have established financial need
11 according to the provisions of paragraph 1 of
12 subsection E of Section 2605 of this title and
13 standards and provisions promulgated by the Oklahoma
14 State Regents for Higher Education,

15 c. If the student was adopted between thirteen (13) and
16 seventeen (17) years of age while in the permanent
17 custody of the Oklahoma Department of Human Services,
18 in the court-ordered custody of a ~~licensed~~ private
19 nonprofit child-placing agency licensed by the
20 Oklahoma Department of Human Services, or federally
21 recognized Indian tribe, as defined by the federal
22 Indian Child Welfare Act of 1978, have established
23 financial need according to the provisions of
24 paragraph 2 of subsection E of Section 2605 of this

- 1 title and standards and provisions promulgated by the
2 Oklahoma State Regents for Higher Education,
- 3 d. ~~If the student was placed~~ Was in the custody of the
4 Oklahoma Department of Human Services, in the court-
5 ordered custody of a private nonprofit child-placing
6 agency licensed by the Oklahoma Department of Human
7 Services, or federally recognized Indian tribe, as
8 defined by the federal Indian Child Welfare Act of
9 1978, at any time during the eighth, ninth, tenth, or
10 eleventh grade and enrolls in the program no later
11 than his or her official date of high school
12 graduation, ~~have established financial need according~~
13 ~~to the provisions of paragraph 3 of subsection E of~~
14 ~~Section 2605 of this title and~~ any additional
15 requirements according to the standards and provisions
16 promulgated by the Oklahoma State Regents for Higher
17 Education, or
- 18 e. If the student is the child of a certified ~~classroom~~
19 teacher and meets the provisions of paragraph 5 of
20 subsection E of Section 2605 of this title. For the
21 purposes of this paragraph, ~~"certified classroom~~
22 ~~teacher"~~ "certified teacher" shall have the same
23 meaning as provided in subparagraph d of paragraph 5
24 of subsection E of Section 2605 of this title. A

certified teacher shall be considered the parent of a student if the certified teacher is the natural or adoptive parent or the permanent legal guardian of the student.

B. 1. A student shall be eligible to participate in the Oklahoma Higher Learning Access Program and to qualify for an award which includes payment of an amount equivalent to resident tuition or other tuition pursuant to Section 2604 of this title for the first semester or other academic unit of postsecondary enrollment if the student meets all of the following criteria:

- a. is a child of any person killed after January 1, 2000, in the line of duty in any branch of the United States Armed Forces or who died after January 1, 2000, as a result of an injury sustained while in the line of duty in any branch of the United States Armed Forces and the person who was killed or died filed an individual or joint Oklahoma income tax return for the tax year prior to the year during which the person was killed or died,
- b. is a resident of this state or is enrolled in a school district located in this state that serves students who reside in both this state and an adjacent state pursuant to a contract as authorized in Section 5-117.1 of this title,

- 1 c. enrolls in an institution within The Oklahoma State
2 System of Higher Education prior to reaching the age
3 of twenty-one (21),
- 4 d. has satisfied admission standards as determined by the
5 Oklahoma State Regents for Higher Education for first-
6 time-entering students for the appropriate type of
7 institution, or, if attending a private institution,
8 has satisfied admission standards as determined by the
9 private institution. No student participating in the
10 Oklahoma Higher Learning Access Program shall be
11 admitted into an institution of higher education by
12 special admission standards,
- 13 e. has secured admission to, and enrolled in, an
14 institution which is a member of The Oklahoma State
15 System of Higher Education, a postsecondary
16 vocational-technical program offered by a technology
17 center school that meets the requirements to be
18 eligible for federal student financial aid, or a
19 private institution of higher learning located within
20 this state and accredited pursuant to Section 4103 of
21 this title, and
- 22 f. executes an agreement pursuant to subsection C of
23 Section 2605 of this title.
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1 2. A student who is eligible to participate in the program
2 pursuant to this subsection shall not be required to meet the
3 eligibility requirements set forth in subsection A of this section.

4 C. To retain eligibility while pursuing the program of higher
5 learning in which enrolled, the student shall:

6 1. Meet the requirements for retention and degree completion as
7 established by the institution in which the student is enrolled;

8 2. Maintain good academic standing and satisfactory academic
9 progress according to standards of the Oklahoma State Regents for
10 Higher Education;

11 3. Maintain satisfactory academic progress as required for
12 eligibility for federal Title IV student financial aid programs.
13 The provisions of this paragraph shall become effective for the
14 2012-2013 school year;

15 4. Comply with the standards related to maintenance of
16 eligibility as promulgated by the Oklahoma State Regents for Higher
17 Education; and

18 5. Refrain from conduct that leads to expulsion or suspension
19 of more than one semester from an institution of higher education.
20 A student who violates the provisions of this paragraph shall
21 permanently lose eligibility for program benefits. The provisions
22 of this paragraph shall become effective January 1, 2008.

23 D. The Oklahoma State Regents for Higher Education and the
24 State Board of Career and Technology Education shall promulgate

1 rules relating to maintenance of eligibility under the Oklahoma
2 Higher Learning Access Act by a student.

3 E. It is the intent of the Legislature that students in the
4 ninth grade for the 1992-93 school year who are determined to be
5 eligible Oklahoma Higher Learning Access students pursuant to the
6 Oklahoma Higher Learning Access Act shall be the first students
7 eligible for benefits from the Oklahoma Higher Learning Access Trust
8 Fund.

9 F. The Oklahoma State Regents for Higher Education are
10 authorized to study, develop, and propose criteria for determining
11 award eligibility based upon the completion of seven semesters of
12 high school coursework by a student.

13 SECTION 2. AMENDATORY 70 O.S. 2021, Section 2605, as
14 last amended by Section 2, Chapter 485, O.S.L. 2025 (70 O.S. Supp.
15 2025, Section 2605), is amended to read as follows:

16 Section 2605. A. Each school year, every fifth- through
17 eleventh-grade student in the public and private schools of this
18 state and students who are educated by other means and are in the
19 equivalent of the fifth through eleventh grade shall be apprised,
20 together with the parent, custodial parent, or guardian of the
21 student, of the opportunity for access to higher learning under the
22 Oklahoma Higher Learning Access Program. The Oklahoma State Regents
23 for Higher Education and the State Board of Education shall develop,
24 promote, and coordinate a public awareness program to be utilized in

1 making students and parents aware of the Oklahoma Higher Learning
2 Access Program.

3 B. On a form provided by the Oklahoma State Regents for Higher
4 Education, every public school district shall designate at least one
5 Oklahoma Higher Learning Access Program contact person, who shall be
6 a counselor or teacher, at each public school site in this state in
7 which eighth-, ninth-, tenth-, or eleventh-grade classes are taught.
8 When requested by the State Regents, the State Board of Education
9 shall assist the State Regents to ensure the designation of contact
10 persons. Private schools shall also designate at least one school
11 official as a contact person. For students who are educated by
12 other means, a parent or guardian or other person approved by the
13 State Regents shall be designated the contact person.

14 C. 1. Students who qualify on the basis of financial need
15 according to subsection D or E of this section or who meet the
16 eligibility qualification set forth in subparagraph d of paragraph 8
17 of subsection A of Section 2603 of this title or in subparagraph a
18 of paragraph 1 of subsection B of Section 2603 of this title no
19 later than December 31 of their twelfth-grade year or prior to
20 reaching the age of ~~seventeen (17)~~ eighteen (18) and who qualify on
21 the basis of the standards and provisions promulgated by the
22 Oklahoma State Regents for Higher Education shall be given the
23 opportunity throughout the eighth-, ninth-, tenth-, and eleventh-
24 grade years and no later than December 31 of the twelfth-grade year,

1 for students enrolled in a public or private school, or no later
2 than the date of graduation or between the ages of thirteen (13)
3 years of age and ~~seventeen (17)~~ prior to reaching eighteen (18)
4 years of age, for students who are educated by other means, to enter
5 into participation in the program by agreeing to, throughout the
6 remainder of their school years or educational program:

- 7 a. attend school or an educational program regularly and
- 8 do homework regularly,
- 9 b. refrain from substance abuse,
- 10 c. refrain from commission of crimes or delinquent acts,
- 11 d. have school work and school records reviewed by
- 12 mentors designated pursuant to the program,
- 13 e. provide information requested by the Oklahoma State
- 14 Regents for Higher Education or the State Board of
- 15 Education, and
- 16 f. participate in program activities.

17 2. Students who meet the eligibility qualification set forth in
18 subparagraph a of paragraph 1 of subsection B of Section 2603 of
19 this title after December 31 of their twelfth-grade year or after
20 reaching the age of eighteen (18) shall be given the opportunity
21 prior to reaching the age of twenty-one (21) to enter into
22 participation in the program and shall execute an agreement with
23 provisions as determined by the Oklahoma State Regents for Higher
24 Education.

1 3. The contact person shall maintain the agreements, which
2 shall be executed on forms provided by the Oklahoma State Regents
3 for Higher Education and managed according to regulations
4 promulgated by the Oklahoma State Regents for Higher Education, and
5 the contact person shall monitor compliance of the student with the
6 terms of the agreement. The Oklahoma State Regents for Higher
7 Education are authorized to process student agreements and verify
8 compliance with the agreements. Students failing to comply with the
9 terms of the agreement shall not be eligible for the awards provided
10 in Section 2604 of this title.

11 4. The Oklahoma State Regents for Higher Education may provide
12 an exception to the age limits provided for in paragraphs 1 and 2 of
13 this subsection pursuant to subsection L of this section.

14 5. Notwithstanding the provisions of Sections 5-132 and 5-132.1
15 of this title, a student who is age twenty-one (21) or older shall
16 not be eligible to enter into participation in the program.

17 D. Except as otherwise provided for in subsection E of this
18 section and except for students who qualify pursuant to subsection B
19 of Section 2603 of this title, a student shall not be found to be in
20 financial need for purposes of the Oklahoma Higher Learning Access
21 Program if:

22 1. Beginning with eighth-, ninth-, or tenth-grade students who
23 are enrolled in a public or private school or students between the
24 ages of thirteen (13) and fifteen (15) who are educated by other

1 means who apply for participation in the program in the 2017-2018
2 school year, the federal adjusted gross income of the student's
3 parent(s) exceeds Fifty-five Thousand Dollars (\$55,000.00) per year;

4 2. Beginning with eighth-, ninth-, tenth-, or eleventh-grade
5 students who are enrolled in a public or private school or students
6 between the ages of thirteen (13) and sixteen (16) who are educated
7 by other means who apply for participation in the program in the
8 2021-2022 school year, the federal adjusted gross income of the
9 student's parent(s) exceeds Sixty Thousand Dollars (\$60,000.00) per
10 year;

11 3. Beginning with eighth-, ninth-, tenth-, or eleventh-grade
12 students who are enrolled in a public or private school or students
13 between the ages of thirteen (13) and sixteen (16) who are educated
14 by other means who apply for participation in the program in the
15 2022-2023 school year:

- 16 a. the federal adjusted gross income of the student's
17 parent(s), who have two or fewer dependent children,
18 exceeds Sixty Thousand Dollars (\$60,000.00) per year,
19 b. the federal adjusted gross income of the student's
20 parent(s), who have three or four dependent children,
21 exceeds Seventy Thousand Dollars (\$70,000.00) per
22 year, or
23
24

1 c. the federal adjusted gross income of the student's
2 parent(s), who have five or more dependent children,
3 exceeds Eighty Thousand Dollars (\$80,000.00) per year;

4 4. Beginning with eighth-, ninth-, tenth-, or eleventh-grade
5 students or twelfth-grade students no later than December 31 of
6 their twelfth-grade year who are enrolled in a public or private
7 school or students between ~~the ages of~~ thirteen (13) years of age
8 and ~~seventeen (17)~~ prior to reaching eighteen (18) years of age who
9 are educated by other means who apply for participation in the
10 program in the 2025-2026 school year:

11 a. the federal adjusted gross income of the student's
12 parent(s), who have two or fewer dependent children,
13 exceeds Sixty Thousand Dollars (\$60,000.00) per year,

14 b. the federal adjusted gross income of the student's
15 parent(s), who have three or four dependent children,
16 exceeds Seventy Thousand Dollars (\$70,000.00) per
17 year, or

18 c. the federal adjusted gross income of the student's
19 parent(s), who have five or more dependent children,
20 exceeds Eighty Thousand Dollars (\$80,000.00) per year;

21 5. Beginning with the 2018-2019 academic year, prior to
22 receiving any Oklahoma Higher Learning Access Program benefit award
23 for any year during which the student is enrolled in an institution
24 which is a member of The Oklahoma State System of Higher Education,

1 a postsecondary vocational-technical program offered by a technology
2 center school that meets the requirements to be eligible for federal
3 student financial aid, or a private institution of higher learning
4 located within this state and accredited pursuant to Section 4103 of
5 this title, the federal adjusted gross income of the student's
6 parent(s) exceeds One Hundred Thousand Dollars (\$100,000.00) per
7 year.

8 The determination of financial qualification as set forth in
9 this paragraph shall be based on the income of the student, not the
10 income of the parent(s), if a student:

- 11 a. is determined to be independent of the student's
12 parents for federal financial aid purposes,
- 13 b. was in the permanent custody of the Oklahoma
14 Department of Human Services at the time the student
15 enrolled in the program, or
- 16 c. was in the court-ordered custody of a federally
17 recognized Indian tribe, as defined by the federal
18 Indian Child Welfare Act of 1978, at the time the
19 student enrolled in the program.

20 The provisions of this paragraph shall apply to any student who
21 has received an Oklahoma Higher Learning Access Program benefit
22 award after the 2017-2018 school year; and

23 6. The Oklahoma State Regents for Higher Education shall review
24 the determination of financial qualification as set forth in

1 paragraphs 1, 2, 3, and 4 of this subsection if the income from
2 taxable and nontaxable sources of the student's parent(s) includes
3 income received from nontaxable military benefits or income received
4 from the federal Social Security Administration due to the death or
5 disability of the student's parent(s). If the income from taxable
6 and nontaxable sources of the student's parent(s), excluding income
7 received from nontaxable military benefits or income received from
8 the federal Social Security Administration due to the death or
9 disability of the student's parent(s), does not exceed the
10 limitations set forth by paragraphs 1, 2, 3, and 4 of this
11 subsection, the student shall be determined to have met the
12 financial qualification set forth in paragraphs 1, 2, 3, and 4 of
13 this subsection.

14 E. 1. A student who was adopted between birth and twelve (12)
15 years of age while in the permanent custody of the Oklahoma
16 Department of Human Services, in the court-ordered custody of a
17 ~~licensed~~ private nonprofit child-placing agency licensed by the
18 Oklahoma Department of Human Services, or federally recognized
19 Indian tribe, as defined by the federal Indian Child Welfare Act of
20 1978, shall not be found to be in financial need for purposes of the
21 Oklahoma Higher Learning Access Program if at the time the student
22 begins postsecondary education and prior to receiving any Oklahoma
23 Higher Learning Access Program benefit award, the federal adjusted
24 gross income of the student's parent(s) exceeds One Hundred Fifty

1 Thousand Dollars (\$150,000.00) per year. The provisions of this
2 paragraph shall not apply to any student who has received an
3 Oklahoma Higher Learning Access Program benefit award prior to the
4 2012-2013 school year.

5 2. A student who was adopted between thirteen (13) and
6 seventeen (17) years of age while in the permanent custody of the
7 Oklahoma Department of Human Services, in the court-ordered custody
8 of a ~~licensed~~ private nonprofit child-placing agency licensed by the
9 Oklahoma Department of Human Services, or federally recognized
10 Indian tribe, as defined by the federal Indian Child Welfare Act of
11 1978, shall not be found to be in financial need for purposes of the
12 Oklahoma Higher Learning Access Program if at the time the student
13 begins postsecondary education and prior to receiving any Oklahoma
14 Higher Learning Access Program benefit award, the federal adjusted
15 gross income of the student's parent(s) exceeds Two Hundred Thousand
16 Dollars (\$200,000.00) per year. The provisions of this paragraph
17 shall not apply to any student who has received an Oklahoma Higher
18 Learning Access Program benefit award prior to the 2012-2013 school
19 year.

20 3. ~~A student who was placed in the custody of the Department of~~
21 ~~Human Services at any time during the eighth, ninth, tenth, or~~
22 ~~eleventh grade and enrolls in the program no later than his or her~~
23 ~~official date of high school graduation shall not be found to be in~~
24 ~~financial need for purposes of the Oklahoma Higher Learning Access~~

1 ~~Program if the federal adjusted gross income of the student exceeds~~
2 ~~Sixty Thousand Dollars (\$60,000.00) per year.~~ Except for students
3 who qualify pursuant to subparagraph d of paragraph 8 of subsection
4 A and subsection B of Section 2603 of this title, the determination
5 of financial qualification as set forth in this subsection shall be
6 based on the income of the student, not the income of the parent(s),
7 if the student is determined to be independent of the student's
8 parent(s) for federal financial aid purposes. A determination of
9 financial qualification shall not be required for the student who
10 meets the criteria set forth in this subsection at the time the
11 student applies for participation in the program. The provisions of
12 this paragraph shall not apply to any student who has received an
13 Oklahoma Higher Learning Access Program benefit award prior to the
14 2008-2009 school year.

15 ~~5.~~

16 4. a. A student who is the child of a certified ~~classroom~~
17 teacher at the time the student applies for
18 participation in the Oklahoma Higher Learning Access
19 Program shall not be found to be in financial need for
20 the purposes of the Oklahoma Higher Learning Access
21 Program if, beginning with eighth-, ninth-, tenth-, or
22 eleventh-grade students or twelfth-grade students no
23 later than December 31 of their twelfth-grade year
24 who are enrolled in a public or private school or

1 students between thirteen (13) years of age and
2 ~~seventeen (17)~~ prior to reaching eighteen (18) years
3 of age who are educated by other means who apply for
4 participation in the program in the 2025-2026 school
5 year, the household income of the student's parent(s)
6 is equal to or greater than seven hundred percent
7 (700%) of the federal poverty level (FPL).

8 b. Prior to receiving any Oklahoma Higher Learning Access
9 Program benefit award for any year during which the
10 student is enrolled in an institution that is a member
11 of The Oklahoma State System of Higher Education, a
12 postsecondary vocational-technical program offered by
13 a technology center school that meets the eligibility
14 requirements for federal student financial aid, or a
15 private institution of higher learning located within
16 this state and accredited pursuant to Section 4103 of
17 this title, the household income of the parent(s) of a
18 student who qualifies pursuant to this paragraph shall
19 not be equal to or greater than seven hundred percent
20 (700%) of the federal poverty level (FPL).

21 c. The Oklahoma State Regents for Higher Education shall
22 verify the full-time employment status of the
23 student's parent(s) and the current standard or
24 alternative certification in a classroom subject of

1 the parents prior to a student who qualifies pursuant
2 to this paragraph receiving any Oklahoma Higher
3 Learning Access Program benefit award.

4 d. For the purposes of this paragraph, ~~"certified~~
5 ~~classroom teacher"~~ "certified teacher" means a
6 ~~certified,~~:

7 (1) full-time classroom teacher standard or
8 alternatively certified as a teacher by the State
9 Board of Education, teaches a classroom subject
10 as determined by the State Regents, and who has
11 been employed as a teacher in a public school
12 district classroom in this state for a minimum of
13 ten (10) years prior to his or her child applying
14 for participation in the program,

15 (2) full-time counselor, librarian, school nurse, or
16 athletic trainer who is standard or alternatively
17 certified as a teacher by the State Board of
18 Education if employed by a public school district
19 or a technology center school district in this
20 state and otherwise fulfills the requirements of
21 this paragraph, and

22 (3) full-time classroom teacher standard or
23 alternatively certified as a teacher by the State
24 Board of Education who is employed to teach K-12

public school students at a technology center
school district in this state if the teacher is
employed to teach at least one fall and one
spring semester class per academic year that
provides free public education to at least one K-
12 student and if the teacher otherwise fulfills
the requirements of this paragraph.

e. The certified teacher ~~is~~ shall not be required to have
been employed by the same public school district for
ten (10) consecutive years and the ten (10) years of
employment shall not be required to be consecutive.
However, the ten (10) years of employment shall have
occurred in the last twenty (20) years.

f. Certified ~~classroom~~ teacher does not mean a certified
teacher who is employed as a school district
superintendent, principal, or any other position
within the administration of a public school district
when his or her child applies for participation in the
program or prior to his or her child receiving any
Oklahoma Higher Learning Access Program benefit award.

g. Service as an emergency or provisional certified
teacher shall not qualify for the employment
requirements in this paragraph.

1 F. The financial qualification of a student as set forth in
2 subsections D and E of this section shall be certified by the
3 contact person or by the Oklahoma State Regents for Higher Education
4 on the agreement form provided by the Oklahoma State Regents for
5 Higher Education. The form shall be retained in the permanent
6 record of the student and a copy forwarded to the Oklahoma State
7 Regents for Higher Education.

8 G. Agreements shall be witnessed by the parent, custodial
9 parent, or guardian of the student, who shall further agree to:

10 1. Assist the student in achieving compliance with the
11 agreements;

12 2. Confer, when requested to do so, with the school contact
13 person, other school personnel, and program mentors;

14 3. Provide information requested by the Oklahoma State Regents
15 for Higher Education or the State Board of Education; and

16 4. Assist the student in completing forms and reports required
17 for program participation, making applications to institutions and
18 schools of higher learning, and filing applications for student
19 grants and scholarships.

20 H. The Oklahoma State Regents for Higher Education shall
21 promulgate rules for the determination of student compliance with
22 agreements made pursuant to this section.

23 I. The Oklahoma State Regents for Higher Education shall
24 designate personnel to coordinate tracking of program records for

1 the years when students participating in the program are still in
2 the schools or are being educated by other means, provide staff
3 development for contact persons in the schools, and provide liaison
4 with the State Board of Education and local organizations and
5 individuals participating in the program.

6 J. The school district where an Oklahoma Higher Learning Access
7 Program student is enrolled when the student begins participation in
8 the program and any subsequent school district where the student
9 enrolls shall forward information regarding participation by the
10 student in the program to a school to which the student transfers
11 upon the request of the school for the records of the student.

12 K. Students participating in the Oklahoma Higher Learning
13 Access Program shall provide their Social Security number or their
14 student identification number used by their school to the Oklahoma
15 State Regents for Higher Education. The State Regents shall keep
16 the numbers confidential and use them only for administrative
17 purposes.

18 L. The State Regents may provide an exception to the age limits
19 provided for in paragraphs 1 and 2 of subsection C of this section
20 to a student due to hardship circumstances and allow an application
21 to the Oklahoma Higher Learning Access Program for twelfth-grade
22 students enrolled in a public or private school and students who are
23 educated by other means and are in the equivalent of twelfth grade.

1 Provided, however, the exception due to hardship circumstances shall
2 not apply to:

3 1. A student enrolled in a public or private school after the
4 student's official date of high school graduation;

5 2. A student educated by other means who is age nineteen (19)
6 or older; or

7 3. Any student who is age twenty-one (21) or older.

8 The Oklahoma State Regents for Higher Education shall promulgate
9 rules to implement the provisions of this subsection.

10 SECTION 3. This act shall become effective November 1, 2026.

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12 60-2-17030 JM 03/05/26

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